

25STCV02415 25STCV02415

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-08-25

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Case Number: 25STCV02415 Hearing Date: August 25, 2026 Dept: 413

TENTATIVE RULING

Hearing

Date: August 25, 2026

Immigrant Rights Defense Council, LLC v. Aroldo

Marroquin, Case No. 25STCV02415

Proceeding: Plaintiff's Motion

for Sanctions

Ruling: Plaintiff's Motion for Sanctions is

granted in the amount of \$1,185.

Plaintiff's request for an Order to Show Cause Re Contempt is

denied.

Plaintiff

seeks sanctions for Defendant's failure to comply with an Order issued on September 22, 2025, granting its motion to compel Defendant to provide Code-compliant response without objection to Request for Production of Documents (Set One) and ordering that such Responses be served by October 22, 2025. Defendant has failed to serve the Responses as ordered.

Plaintiff seeks monetary sanctions in the amount of \$7,830, comprises of \$2,550 (an hour to draft the motion, an hour to draft a reply and an hour to appear at the hearing and prepare for it) in fees for this motion, plus a \$60 filing fee; \$2,550 in fees and a \$60 filing fee for a motion to continue the trial date; and \$2,550 in fees and a \$60 filling fee for an ex parte application.

Plaintiff

has failed to submit any case or statutory authority to support a grant of fees as monetary sanctions that are not related to the motion for the discovery order being sought. Therefore, all fees and costs related to the non-discovery motions is denied. Moreover, the Court finds that an hourly rate of \$850 for preparation of a simple motion like the one filed is not reasonable. The court's award of sanctions is based upon a rate of \$750. The Court's sanctions of \$1,125 in fees is based upon the one hour to prepare the motion and a half-hour to appear at the hearing, plus the \$60 filing fee.

The Court

denies the request for an Order to Show Cause why Defendant should not be held in contempt. Pursuant to section 1211 of the Code of Civil Procedure, "When the contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit shall be presented to the court or judge of the facts constituting the contempt, or a statement of the facts by the referees or arbitrators, or other judicial officers." Plaintiff presented no affidavit to the Court.